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VIA EEOC PORTAL AND EMAIL

U.S. Equal Employment Opportunity Commission
Houston District Office
1919 Smith Street, 6th Floor
Houston, TX 77002
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Re: **Baxley v. Turner Construction Company/Agency Charge No. 460-2026-09584**

Dear Investigator:

This firm represents Turner Construction Company ("Turner" or the "Company") in connection with the above-captioned charge (the "Charge") filed by Garrett Baxley ("Baxley") with the Equal Employment Opportunity Commission and the Texas Workforce Commission Civil Rights Division on August 19, 2026.

Turner employed Baxley as a Human Resources Manager from October 6, 2025 until May 19, 2026, a period of approximately seven and a half months. In his Charge, Baxley asserts three claims under the Americans with Disabilities Act ("ADA") and Chapter 21 of the Texas Labor Code, all related to his alleged autism spectrum disorder, depression, and anxiety: disability discrimination, failure to accommodate, and retaliation. Each claim fails on the facts and under applicable law.

Simply put, Turner terminated Baxley because of performance and judgment failures that began in his first month of employment and continued through the week of his separation. Within weeks of his hire in October 2025, Baxley disregarded Turner's personal protective equipment, tobacco, and dress code policies. By early February 2026, before the written disclosure on which the Charge relies, Baxley had publicly reprimanded an administrator in front of colleagues and had told his supervisor that her use of a standard email template made the project feel like hers rather than his, and he was counseled on both. On February 27, 2026, Jeff Dolan verbally issued Baxley a final warning after Baxley used a homophobic slur about two identifiable workers during an HR team meeting attended by ten of his colleagues, and Baxley responded that it was unfair to hold him accountable for language he did not know was inappropriate. In the weeks that followed, Baxley mishandled a domestic violence investigation and a sexual harassment complaint, refused to collaborate with his own team and with Turner's joint venture partner, failed to complete assignments his supervisor told him were urgent, and walked off the job on multiple occasions. Turner terminated his employment on May 19, 2026.

The Charge's causation theory collapses on the question of who knew what. Baxley made his disclosure to his supervisor, Corina Murguia, who shared that information with no one

and who did not make the termination decision. Dolan, who did make that decision, was never told nor did he otherwise know that Baxley had a disability and was never asked for an accommodation. The failure to accommodate claim fails for the related reason that Baxley never asked Turner for anything. The Charge refers repeatedly to requested accommodations and to Turner's supposed refusal to engage in the interactive process, yet it does not identify a single adjustment that Baxley sought and Turner declined. The document Baxley relies on says the opposite of what he now claims, because he wrote that his disclosure "[wa]sn't a request for special treatment." To the extent his stated preference for explicit, consistent, and direct communication is treated as a request, Murguia communicated with him in exactly that manner.

Before the Commission evaluates Baxley's account of his own employment, it should understand who is making these allegations. One week after Baxley left Turner, during a routine wipe of his company-issued phone, Turner's IT department found more than a dozen obscene images and videos that Baxley had stored on Turner's device. They included homemade pornography, photographs of Baxley's exposed genitalia taken inside Turner's own offices, and digitally manipulated images placing the face of a female HR subordinate onto a nude body. This was not a careless download. Baxley photographed his genitals at his workplace, and he fabricated sexualized images of a female subordinate, the same woman who had reported that Baxley told her that a project leader spoke with her only because she was "pretty." He did all of this while serving as the Human Resources Manager responsible for receiving and investigating harassment complaints at the site, and while holding himself out to Turner's employees as the person they should trust with those complaints.

Turner acknowledges that it discovered this material after Baxley's separation and that the material did not motivate the termination decision. It bears directly, however, on the weight the Commission should give to anything Baxley says. His Charge rests almost entirely on his own uncorroborated characterizations: that he made accommodation requests he cannot describe, that no one criticized his work before his disclosure, that an inappropriate remark he concedes he made was "taken out of context," and that he asked Jeff Dolan for accommodations in a conversation Dolan is certain never happened. A man who secretly created nude images of a subordinate he routinely interacted with, who photographed his genitals in his employer's offices, and who then swore out a charge portraying himself as a conscientious HR professional blindsided by pretextual criticism is not a reliable narrator of his own employment. The judgment that produced this material is the same judgment Baxley brought to a domestic violence report and a sexual harassment complaint in his final weeks, and it is the same judgment reflected in his claim that he did not know "butt buddies" was a homophobic slur. Baxley's conduct is irreconcilable with the account he has sworn to, and his assertions are entitled to no credit.

This conduct would have resulted in immediate termination for any Turner employee, and beyond question for the HR Manager charged with investigating harassment. Under the after-acquired evidence doctrine, the discovery therefore caps any relief Baxley could theoretically obtain at roughly seven days, as explained below.

Baxley's attempt to recast a legitimate, performance-based termination as discrimination or retaliation should be rejected, and the Charge should be dismissed in its entirety. The

Commission should not extend the benefit of the doubt to a charging party whose own conduct, concealed until after his separation, demonstrates that he cannot be taken at his word.

FACTUAL BACKGROUND

Turner hired Baxley as a Human Resources Manager on October 6, 2025 to support a joint venture construction project in Texas. Baxley initially reported to Jake Overman and, beginning in approximately January 2026, to Corina Murguia. Jeff Dolan, Turner's Vice President, Senior HR Director, was the most senior human resources leader involved with Baxley's employment, and he made the decision to terminate that employment effective May 19, 2026.

I. Baxley Explicitly Did Not Request Any Accommodation, but Even if He Had, the Company Satisfied His Request.

In the Charge, Baxley makes various references to "requests for accommodations" that the Company failed to provide. Notably absent from the Charge is any reference to what specific accommodations Baxley requested. Baxley's inability to articulate the nature of his alleged request demonstrates his failure to put the Company on notice of a clear request for accommodation.

On February 16, 2026, Baxley shared his "Owner's Manual"[1] in an email to his supervisor, Corina Murguia, and disclosed to her that he was on the spectrum, and can suffer from anxiety which can collapse into depression. Turner does not dispute that Murguia received that email. Disclosing a medical condition is not the same as asking for a workplace adjustment, however, and the email itself draws that line, because Baxley expressly wrote that his disclosure "**[wa]sn't a request for special treatment.**" (Ex. A.) The disclosure also went no further within Turner. Baxley addressed the email to Murguia alone, copying no one else, and Murguia forwarded it to no one.[2] Turner denies Baxley's allegation that he disclosed a disability or made any accommodation request to Dolan, who made the decision to end his employment.

The two other disclosures the Charge describes do not advance Baxley's claims. He alleges that he verbally told Murguia about his conditions on or around January 26, 2026, which changes nothing, because Murguia is the same person who later received the February email and the same person who told no one. He also alleges that he asked Dolan for help with his accommodations at Turner's Human Resources Manager Bootcamp in Omaha, Nebraska, held

[1] The "Owner's Manual" is a document Dolan created as a part of the onboarding process. The purpose of the document is for new hires to provide insight into how they want to be interacted with, how they communicate and manage conflict, and their leadership style and motivations. Like any other employee, Baxley filled out the Owner's Manual document to provide context to help his team best support him—not to request a special accommodation.

[2] Baxley also alleges that he told a Safety Director he was having a mental health episode. By the Charge's own account, that conversation occurred on February 28, 2026, the day after Baxley received his verbal final warning, so it cannot have motivated the warning. Even if true, the Safety Director would not have had any involvement in any personnel decision related to Baxley, including with respect to his later termination of employment.

March 10 through 12, 2026. That conversation never occurred. Dolan recalls the bootcamp and his limited interactions with Baxley there, and he is certain that Baxley never told him he was "neurodivergent" or anything to that effect, never described how any condition might affect his communications, and never asked him for an accommodation of any kind. Dolan first learned that Baxley claimed a disability after Baxley's employment had already ended. Even on the Charge's own account of a conversation that never happened, nothing was requested, because it alleges only that Baxley told Dolan he is "neurodivergent" and explained how that "may impact his communications," and that Dolan offered to check on him from time to time. A general remark about communication style is not a request for a workplace adjustment, and the Charge identifies nothing that Baxley asked Dolan to do.

In the Owner's Manual, Baxley identified that he would like expectations to be made explicit, consistent and direct, and that structure regulates him. Even accepting at face value that these communication attributes are specific enough to constitute accommodation requests, Baxley offers nothing to suggest that people did not interact with him in this way. To the contrary, Murguia communicated with Baxley consistent with his identified communication style and coached him to improve his performance.[3] The following are examples of his supervisors communicating with him directly and explicitly:

- On February 23, 2026, Baxley used a homophobic slur on a call with ten HR employees, stating that a Turner employee and a contractor were "butt buddies." Dolan and Murguia met with him, explained that the behavior was inexcusable, and told him that any repetition would result in separation. (Ex. B.) Murguia also reached out to Baxley individually that day to make sure he was okay and to offer her support.
- On March 12, 2026, Baxley documented an employee conflict. Murguia reminded him that he should give senior leadership the opportunity to weigh in before anything is finalized, and that he should lean on his direct report, Sydney Allmon, for support. Baxley thanked Murguia for her guidance.
- On April 22, 2026, Murguia and Kevin Ward, Turner's Senior Human Resources Director, reviewed a report Baxley prepared on a domestic violence incident. They identified gaps in the report and reminded Baxley to seek support and partner with others when handling complex employee relations matters.
- On April 23, 2026, Baxley responded to an email including headquarter leadership in a manner in which (as Murguia verbally explained to Baxley) his peers found undermining and non-collaborative.
- On May 14, 2026, Baxley led an HR meeting and was completely unprepared. He did not create an agenda for the meeting and failed to address key action items. After the meeting, Murguia requested Baxley prepare an agenda for future meetings and offered to align before meetings if Baxley would find it useful.

[3] Murguia was also very supportive of Baxley's depression and anxiety struggles and referred him to an EAP (employee assistance program) service, Lyra. Baxley texted her that the program was awesome and he was grateful for the service. Murguia also expressed that she fully supported Baxley if he needed to take time off, remote time, or any flexibility, but he never asked for any such accommodation.

The Company denies that Baxley's completion of an onboarding document (i.e., the Owner's Manual) identifying his vague preferred method of communication was a request for an accommodation, particularly when accompanied by an email explicitly disclaiming the desire for any special treatment. However, even if it was, these examples foreclose any argument that the Company failed to accommodate him.

II. Baxley was Terminated for Legitimate Performance Concerns that are Unrelated to his Alleged Autism Spectrum Disorder, Depression, and/or Anxiety.

Baxley's termination was motivated by legitimate performance issues only. From the start of his employment, Baxley did not exemplify the behavior expected of any Turner employee, let alone an HR professional. In his first month of employment, in October 2025, Baxley was insubordinate: he resisted wearing the proper safety equipment, ignored multiple reminders of the smoking policy, and violated the dress code, disregarding requirements set out in Turner's written policies. These concerns arose roughly three months before Baxley claims to have disclosed anything about his conditions, which defeats the Charge's assertion that Turner first raised performance issues only after his disclosures and alleged protected activity.

The early issues were not isolated, and they foreshadowed more serious problems. Within months, Baxley had accumulated failures that interfered with the HR team's ability to function, including his refusal to collaborate, his mishandling of employee relations matters, his refusal to take ownership of his work, and his use of a homophobic slur about two coworkers in an HR team meeting. The only affirmative evidence Baxley offers to the contrary is the raise he received in February 2026. That increase was a routine four percent annual cost of living adjustment that almost all Turner staff employees received, which is precisely what the Charge itself describes when it reports a move from $120,000 to $124,800. It says nothing about the quality of Baxley's work, and to the extent it says anything about Turner's state of mind, it cuts against him, because Turner gave him the increase after the disclosure he claims triggered the discrimination.

The sections that follow describe Turner's performance-based decision. Baxley disclosed his conditions to Murguia, who told no one and who did not make the decision to terminate him. Turner gave Baxley every opportunity to correct course. He received coaching from Murguia and others on his professionalism and his performance, and in February 2026 Dolan told him directly that any further misconduct would end his employment. (Ex. B.) He did not improve. Baxley instead deflected responsibility, became defensive, and walked off the job on multiple occasions.[4]

[4] Baxley claims that Turner retaliated against him by leaving him off of email communications, and for escalating concerns about the same in emails to Turner management. Notably, in the several emails Baxley cites in the Charge, he does not raise a single concern about his supposed perception that he was treated unfairly on account of a disability or alleged request for accommodation.

i. *Baxley Received a Final Warning for Using a Homophobic Slur About Two Workers.*

Five months into his employment, on February 23, 2026, Baxley used a homophobic slur in an HR team meeting attended by ten people, stating that a Turner employee and a contractor were "butt buddies." Dolan verbally issued him a final warning four days later, on February 27, 2026. (Ex. B.) This was not an off-color joke. Baxley, the HR Manager responsible for the site, used the slur to describe two identifiable workers in front of ten of his HR colleagues. Had another Turner employee made that comment, Baxley himself would have been the person expected to investigate it and recommend discipline. Dolan delivered the warning verbally, with Murguia present as a witness, and Turner documented the conversation contemporaneously. (Ex. B.) Dolan told Baxley that the conduct constituted a final warning and that "[a]ny future behavior not aligned with standards would result in separation." (Ex. B.) The Charge's suggestion that the absence of a written warning issued to Baxley means Baxley was never warned that his job was at risk is accordingly wrong on the facts, and it is beside the point as a matter of law. Neither the ADA nor Chapter 21 requires an employer to issue written discipline, to follow progressive discipline, or to place an at-will employee on a performance improvement plan before terminating him.

Dolan met with Baxley after the incident to reset expectations, with Murguia present, and told him that the conversation constituted a final warning and that any future behavior inconsistent with Turner's standards would result in separation. (Ex. B.) That meeting took place eleven days after Baxley disclosed his conditions to Murguia. If Murguia harbored any animus because of those conditions, this was her opportunity to act on it under cover of an unquestionably legitimate reason, and she did not. Turner instead kept Baxley employed and framed the warning as an opportunity to improve, telling him that the Company "wants Garrett to succeed," that the incident "should be treated as a learning opportunity," and that there was "still belief in his ability to grow with the organization if behavior improves." (Ex. B.)

Baxley's response to the warning compounded the concern. Rather than accept responsibility, he told Dolan that it was "unfair to be held accountable for language he 'didn't know' was inappropriate." (Ex. B.) Dolan had to explain to his own HR Manager that he was solely responsible for the words he chose, that it was his responsibility to understand their meaning and impact, and that intent does not eliminate accountability for impact. (Ex. B.) That an HR Manager claimed not to recognize "butt buddies" as a homophobic slur, and then disputed being held accountable for it, is itself disqualifying for a position whose core responsibilities included investigating harassment and discrimination complaints and counseling employees on protected-characteristic issues.

ii. *Baxley Failed to Collaborate with His Colleagues.*

As a general matter, one of Baxley's key shortcomings was his refusal to collaborate. His colleagues frequently complained that this resistance made it significantly more challenging for them to do their jobs. For example, one of Baxley's subordinates, Jordyn Waters, noted that Baxley "operate[d] independently and d[id] not share updates from leadership meetings he attends," and that he gatekeeps information from other team members. (Ex. C.) She also complained that Baxley did not provide her with important context she needed for her job when

she began at the project site. Baxley's failure to collaborate also drew complaints from outside the organization. Clayco, a partner organization, complained that Baxley refused to collaborate, and Murguia had to intervene and coach him to be more collaborative.

Baxley also frequently perceived collaborative efforts as threats to his position. For example, Waters recounted that in her first conversation with Baxley, he stated that she was "sent out here to take his job." (Ex. C.) Similarly, Baxley refused to use templates and frameworks Murguia provided, interpreting the suggestion that he work from a template as an attempt by Murguia to take over his responsibilities. Beyond illustrating his unwillingness to collaborate, these incidents reflect Baxley's fundamental misunderstanding of his role within the organization. As a supervisee, it was not Baxley's place to challenge every instruction from his supervisor.[5]

Moreover, Baxley's insistence on working independently resulted in subpar work product. Rather than using the templates provided to him, Baxley frequently relied on AI to generate deliverables and failed to check them for accuracy. This resulted in work product that was often unintelligible, which Baxley was unable to explain to his colleagues. As a result, his co-workers were forced to spend additional time editing his output, which contributed to missed project deadlines.

iii. ***Baxley Mishandled Employee Relations Matters.***

In the weeks leading up to his termination, Baxley mishandled two sensitive employee relations matters that exemplified his poor judgment and failure to follow Company protocol, a report of domestic violence involving a partner organization's employees and a complaint of sexual harassment. In neither case did Baxley involve a second chair, contrary to Company protocol relayed to him as early as January 2026.[6]

Those two incidents were not isolated, and the pattern they reflect began before Baxley's written disclosure. In February 2026, Baxley publicly reprimanded an administrator for asking for help on an email thread that included three other recipients. As Murguia explained to Baxley, HR Managers serve as consultants to the business and are not responsible for disciplining employees. Baxley's handling of the matter reflected a misunderstanding of his role and separately demonstrated poor judgment, because the employee was simply asking for help. Murguia coached Baxley on the importance of speaking with employees before escalating and on using a second-chair person.

Despite this coaching, Baxley continued to have the same problems. With respect to the domestic violence incident, Baxley investigated the workplace impact of an off-site incident between a married couple that worked for a partner organization. Baxley made premature assumptions about the alleged perpetrator and was prepared to terminate him without gathering key facts. Murguia and Ward challenged Baxley on several aspects of the report he created,

[5] Another example of Baxley misunderstanding and overstating his role is that he drafted an ethics policy, a responsibility that fell within the purview of Company headquarters.

[6] Again in March, Murguia instructed Baxley to use a second-chair person in employee relations interviews, and the requirement was reiterated in a presentation Baxley attended at an HR boot camp.

particularly his decision to move forward without speaking to the relevant individuals or gathering the relevant facts. Baxley then generated a second report, in which he recommended revoking the employee's site access. When Murguia later spoke with witnesses, it became clear that Baxley's findings were inaccurate and that he had conducted the investigation with bias.

Baxley's disproportionate focus on the domestic violence matter also caused him to neglect a credible sexual harassment claim that arose around the same time. Rather than investigating the claim thoroughly using the seven-step investigation framework, Baxley minimized the situation. He concluded that the complainant had difficulty setting boundaries in the moment and that he could address it with a conversation. This approach directly contradicted the HR training Baxley received, which required that harassment matters be immediately escalated, investigated through neutral fact-finding, and resolved with leadership alignment. Leadership was not satisfied with Baxley's management of the situation and required Murguia to intervene and complete the investigation.

Following these incidents, Murguia coached Baxley on the importance of maintaining objectivity and following established protocols, including using a second-chair person. His repeated mistakes in handling these situations, notwithstanding this coaching, show significant gaps in his investigative skills and professional judgment.

iv. ***Baxley Failed to Take Ownership of His Work and Was Defensive.***

In addition to rejecting direction and coaching from his supervisor, Baxley failed to take ownership of his work in the manner expected of an HR Manager. For example, days before his termination, Baxley was asked to lead an HR leadership meeting. He arrived unprepared, having neither created an agenda nor planned discussion topics. During the meeting, Baxley raised only one minor action item before Murguia was forced to take over to ensure that key items were addressed. Rather than acknowledging his lack of preparation, Baxley emailed Murguia afterward to deflect responsibility and complain that she had undermined him during the meeting by not aligning with him beforehand.

This lack of ownership extended to Baxley's routine responsibilities, which required significant oversight from Murguia. For example, Murguia had to send Baxley multiple reminders to update a worksheet after the HR leadership meeting at issue. Baxley also failed to own an "Our House, Our Home" training that Murguia told him was urgent. He deflected blame, claiming that leadership had never followed up with him. Ultimately Waters and Murguia were forced to step in and complete the project themselves. These examples reflect a pattern of Baxley failing to take ownership of basic tasks, leaving others to compensate for his lack of follow-through.

Rather than taking ownership of assignments he did not fully understand, Baxley also failed to ask for help, causing unnecessary delays. For example, leadership requested a one-page worksheet from HR displaying the holiday schedule of all the joint venture partner organizations. Baxley did not understand the request and had to be reminded what to do after being coached multiple times. On another occasion, Clayco asked Baxley for employees' addresses for the purpose of sending out welcome packets. Without asking what the information was for, Baxley refused. Clayco complained to Turner's CEO about Baxley's lack of cooperation. When Baxley

was told he had to send the addresses, he did not know where to find them. Murguia had previously told Baxley to collect employees' emergency contact information, but he never did. Baxley's refusal to participate in a project that he did not know how to complete, rather than seeking assistance, caused the project to lag for an entire day.

Baxley also left the job site on several occasions when he sensed he had made a mistake or would be disciplined for his conduct. Waters complained that Baxley would abruptly drop from calls during discussions requiring input or clarification. For example, after the incident that prompted the final warning, Baxley left work abruptly, which prompted HR to conduct a welfare check. Again, in April 2026, Baxley walked off the job after a disagreement about using templates, around the same time as the botched employee relations and sexual harassment investigations. Ward told him that this was unacceptable behavior. The very next day, Baxley, Murguia, and Waters had planned to meet with project leadership following a training seminar, and Baxley left without notifying them. Despite being explicitly told that walking off the job was unacceptable, Baxley repeatedly did it anyway, choosing to disengage rather than take responsibility.

Finally, Baxley's failure to take ownership extended to the basic expectation of being present and available. He kept his office door closed throughout the day, making it difficult to determine whether he was on site. For example, Andy Tandon, Baxley's project leader, was unable to find him after the domestic violence matter, and Murguia later learned that Baxley had been working remotely without notifying her and had lied to her about the reason for his failure to connect with Tandon. Baxley also missed his first meeting with Waters when she joined the site. (Ex. C.) He was then two and a half hours late for his own termination meeting. Baxley's chronic unreliability further demonstrates his unwillingness to take ownership of even the most fundamental expectations of his job.

III. Baxley's Purported Damages Would Be Cut Off by the Evidence Discovered on His Company-Issued Cellphone.

During a routine IT wipe of Baxley's Turner-issued cellphone one week after his separation, Turner discovered at least a dozen obscene images and videos, including homemade pornography, photographs of Baxley's genitalia exposed inside the Turner office, and images of a female HR subordinate with her face superimposed on a nude body. That same subordinate had reported that Baxley told her a project leader spoke with her only because she was "pretty." Storing this material on a company device, and creating sexualized images of a subordinate, exposed Turner to a potential harassment claim and would have ended the employment of any Turner employee, and beyond question that of the HR Manager responsible for investigating harassment complaints at the site.

Turner denies that Baxley's claims have any merit. To the extent he could establish entitlement to any relief, however, the discovery of this material one week after his separation would cut off any recovery from that date forward, as explained in the Argument below.

ARGUMENT

1) Baxley's Damages are Capped Because of After-Acquired Evidence.

Turner denies each of Baxley's claims, but even if the Commission were to allow any of them to proceed, only seven days of damages would be at issue under the after-acquired evidence doctrine. Under that doctrine, when an employer discovers information after termination "so severe that the employee would have been legitimately discharged solely on that basis," the claimant is barred from recovering "damages for the period after the employer discovered the grounds for termination." *Trico Techs. Corp. v. Montiel*, 949 S.W.2d 308, 312 (Tex. 1997); *see also McKennon v. Nashville Banner Publ'g Co.*, 513 U.S. 352, 361-62 (1995) (neither reinstatement nor front pay is available, and back pay is ordinarily calculated only to the date the employer discovered the misconduct); *Bowers v. Sears, Roebuck & Co.*, No. A-13-CV-348-AWA, 2014 U.S. Dist. LEXIS 121539, at *6 n.1 (W.D. Tex. Aug. 29, 2014).

Turner would have discharged Baxley one week after his separation, when a routine IT device wipe revealed more than a dozen obscene images and videos on his company-issued phone. Those files included homemade pornography, photographs of his exposed genitalia taken inside Turner's offices, and digitally manipulated images superimposing a female HR subordinate's face onto a nude body. That same subordinate had earlier reported that Baxley told her a project leader spoke with her only because she was "pretty." This conduct is a terminable offense for any employee and is especially so for an HR Manager charged with investigating allegations of harassment. Baxley would have been legitimately discharged solely on this basis when it came to light, so any potential damages are capped seven days after his termination.

2) Baxley's Claims Each Fail as a Matter of Law.

Aside from the fact that Baxley's potential damages would be capped at seven days if he were to prevail on any claims related to his termination, Baxley fails to state claims of disability discrimination, failure to accommodate, and retaliation.

a) Baxley Cannot State a Claim of Discrimination on the Basis of a Disability.

Baxley's disability discrimination claim fails as a matter of law because he asserts no factual allegations suggesting that the Company discriminated against him. Baxley was terminated solely because of the performance issues chronicled above, including his mishandling of two employee relations investigations in the weeks leading up to his termination, his persistent unwillingness to collaborate or communicate, and his failure to complete assigned tasks.

To establish a *prima facie* case of disability discrimination under the ADA and Chapter 21 of the Texas Labor Code, a claimant must show that (1) he has a disability; (2) he is qualified for the job; and (3) he suffered an adverse employment decision because of his disability. *Donaldson v. Tex. Dep't of Aging & Disability Servs.*, 495 S.W.3d 421, 436 (Tex. Ct. App. 2016) (applying Texas Labor Code); *Turner v. Bexar Cnty. Hosp. Dist.*, No. 5-20-CV-00136-FB-RBF, 2023 U.S. Dist. LEXIS 73516, at *29 (W.D. Tex. Jan. 27, 2023) (applying the ADA). A claimant can show he is "qualified" in one of two ways: "(1) by proving that he can perform all essential job functions with or without modifications or accommodations; or (2) by showing that some reasonable

accommodation by the employer would enable him to perform the job." *Donaldson*, 495 S.W.3d at 437.

First, Baxley cannot establish a *prima facie* case because he cannot show that he was qualified for the position of HR Manager. An HR Manager who uses a homophobic slur about two coworkers in front of ten HR colleagues, and who then disputes being held accountable because he did not know the phrase was inappropriate, cannot perform the essential functions of a role built on investigating discrimination and harassment complaints. (Ex. B.) His failures in two harassment-related investigations weeks before his termination confirm the same conclusion. Nor can Baxley satisfy the alternative path to the qualification element, because he never requested an accommodation and instead stated in writing that he was *not* asking for "special treatment." (Ex. A.) Even if his stated preference to be communicated with explicitly, consistently and directly could be construed as an accommodation request, which Turner denies, his supervisor communicated with him in precisely that manner.

Nor can Baxley show he suffered an adverse action because of his disability. Baxley puts forth no allegations that suggest he was terminated because he was on the spectrum or suffered from anxiety and depression. (*See generally* Charge.) Rather, he merely asserts that he was terminated several months after disclosing his conditions to his manager and indicating a preferred communication style. *See Crutcher v. Dallas Indep. Sch. Dist.*, 410 S.W.3d 487, 496 (Tex. App. 2013) (stating that temporal proximity may be evidence of a causal connection when "separated by weeks, as opposed to months or years"). To the contrary, Baxley was terminated for the performance issues described above. Moreover, notwithstanding Baxley's allegations otherwise, Baxley disclosed his conditions to Murguia, she told no one, and she played no role in the ultimate decision to terminate him.

Even if Baxley were able to state a *prima facie* case, which he cannot, the Company easily satisfies the shifted burden of production "to articulate a legitimate, nondiscriminatory reason." *Donaldson*, 495 S.W.3d at 437 (citing *McDonnell Douglas Corp. v. Green*, 411 U.S. 792, 802 (1973)). Termination for performance deficiencies following corrective counseling is "a legitimate, non-discriminatory reason for discharge." *Id.* at 438. That is what occurred here: Baxley was coached on his conduct and his work, received a final warning in February 2026, did not improve, and was terminated. Thus, Baxley fails to state a claim of disability discrimination under federal and state law.

b) Baxley Cannot State a Failure to Accommodate Claim.

Baxley's failure to accommodate claim likewise fails as a matter of law because Baxley did not request a disability accommodation, and even if his preferred communication style could be construed as such a request, it was satisfied. "To prevail on a claim that an employer failed or refused to make a reasonable accommodation, an employee-plaintiff must prove that: "(1) he has a disability . . . ; (2) an employer covered by the statute had notice of his disability; (3) with reasonable accommodation he could perform his job's essential functions; and (4) his employer failed or refused to make such an accommodation." *Dillard v. SNC-Lavalin Eng'rs & Constructors, Inc.*, 629 S.W.3d 692, 697 (Tex. Ct. App. 2021).

Baxley fails to show that he ever asked Turner for an accommodation or otherwise put it on notice that he was seeking a workplace adjustment because of a medical condition. "The employee is responsible for initiating the reasonable-accommodation discussion . . . [and] the request must be clear enough to let the employer know the employee is requesting an adjustment or change at work for a reason related to a medical condition." *El Paso Cnty. Water Improvement Dist. No. 1 v. Trevizo*, 697 S.W.3d 259, 276 (Tex. Ct. App. 2023). Not only did Baxley fail to initiate a reasonable accommodation discussion, he explicitly stated the opposite, that he intended to make no request for special treatment. Tellingly, while Baxley references a request for accommodation in his Charge, he nowhere identifies what accommodation(s) he supposedly requested. *Trent v. Capella Univ., LLC*, No. 5:25-CV-176-H-BV, 2026 U.S. Dist. LEXIS 196321, at *16-17 (N.D. Tex. May 12, 2026) (holding that a claimant's reference to accommodation requests "without providing any detail about his request . . . is insufficient, even at the motion-to-dismiss stage").

To the extent Baxley relies on the preferred communication style described in his Owner's Manual, that description was not specific enough to constitute a request for accommodation. *See El Paso Cnty. Water Improvement Dist. No.* 1, 697 S.W.3d at 276 (holding that a request for accommodation "must be clear enough to let the employer know the employee is requesting an adjustment or change at work for a reason related to a medical condition"). Because Baxley never made a clear request, Turner had no obligation to initiate the interactive process, and the Charge's repeated complaint that Turner failed to engage in that process therefore states no claim. Even if the Owner's Manual had put Turner on notice, Murguia communicated with Baxley in the manner he described, and Baxley alleges no facts suggesting otherwise. Thus, Baxley's failure to accommodate claim fails.

c) Baxley Cannot State a Claim of Retaliation.

Similarly, Baxley's retaliation claim fails as a matter of law because he cannot demonstrate that he engaged in protected activity, namely, that he submitted a request for accommodation. Even assuming he had, he has failed to allege facts suggesting a causal nexus between any such request and his termination. "To establish a *prima facie* case [of retaliation], a plaintiff must show that (1) he participated in a protected activity, (2) his employer took an adverse employment action against him, and (3) a causal connection existed between his protected activity and the adverse employment action." *Donaldson*, 495 S.W.3d at 441 (Tex. Ct. App. 2016).

As discussed above, "[w]ithout sufficient facts showing that [Baxley] requested an accommodation for his disabilities, [Baxley] cannot show that he engaged in protected activity." *Trent*, 2026 U.S. Dist. LEXIS 196321, at *20. However, even if Baxley could show he requested an accommodation and therefore participated in protected activity, his claim would still fail because he is unable to show a causal nexus between his alleged accommodation request and his termination. Dolan, the individual who made the decision to terminate Baxley, received no accommodation request from him and first learned that Baxley claimed a disability only after the separation. *Tolbert v. Dollar Tree Distrib., Inc.*, No. 4:24-CV-03209, 2026 U.S. Dist. LEXIS 38419, at *13 (S.D. Tex. Feb. 25, 2026) ("In the Fifth Circuit, plaintiff alleging retaliation must provide direct evidence that the individual who made the decision to terminate (or otherwise

retaliate against) the plaintiff had actual knowledge of the protected activity.").[7] Finally, even if Baxley could make a *prima facie* case, which he cannot, the Company has explained the legitimate performance-based reasons for his termination.

The Charge's alternative theory, that Turner terminated Baxley fifteen days after he sent a memorandum to Ward on May 4, 2026, fails for the same reason. Protected activity requires opposition to conduct made unlawful by the ADA or Chapter 21, or a request for accommodation. None of the communications the Charge catalogs, including the February 9 email to Murguia, the April 9 email to Overman, the April 20[8] email to Ward and Dolan, and the May 4 memorandum, mentions a disability, an accommodation, or discrimination of any kind. Each complains instead about communication, workflow, and the fairness of criticism directed at Baxley's work, none of which is protected activity. Baxley also identifies no adverse action apart from his termination, and exclusion from email threads is not a materially adverse employment action. Finally, the conduct that led to the termination, including Baxley's mishandling of the domestic violence and sexual harassment matters, his unpreparedness at the May 14 HR leadership meeting, and his repeated decisions to walk off the job, arose independently of and largely before the May 4 memorandum.

CONCLUSION

Before turning to its findings, the Commission should weigh what Baxley concealed. While he served as the Human Resources Manager responsible for receiving and investigating harassment complaints at the site, Baxley kept more than a dozen obscene images and videos on his Turner-issued phone, including homemade pornography and photographs of his own exposed genitalia taken inside Turner's offices. He also fabricated nude images of a female HR subordinate, superimposing her face onto another woman's body. That same subordinate had already reported him for telling her that a project leader spoke with her only because she was "pretty." Turner discovered this material one week after Baxley's separation, during a routine device wipe, and only because Baxley no longer controlled the phone. The judgment reflected in that conduct is the same judgment Baxley brought to a domestic violence report and a sexual harassment complaint in his final weeks, and the same judgment that led him to tell ten HR colleagues that two identifiable men were "butt buddies" and then insist it was unfair to hold him accountable. A man who did these things, and who then swore out a Charge portraying himself as

[7] Baxley suggests he informed Dolan of accommodation requests two months before his termination. As explained above, that conversation never occurred, and Dolan first learned that Baxley claimed a disability only after the separation. Even if the conversation had occurred, Baxley pleads no facts suggesting that any such request and his termination were related. *Donaldson*, 495 S.W.3d at 444 (stating that an employer's knowledge of an employee's protected activity, "standing alone, is insufficient to demonstrate the required causal link of a prima facie retaliation case."); *Crutcher*, 410 S.W.3d at 496 (holding "temporal proximity between a protected act and an adverse employment action may be evidence of a causal connection 'when they are separated by weeks, as opposed to months or years'").

[8] The Company believes the "April 22, 2026" email Baxley refers to in the Charge was an email sent to Ward and Dolan on April 20, 2026.

a blameless professional undone by pretext, has forfeited any claim to the Commission's confidence. His assertions are entitled to no weight.

For the foregoing reasons, the Charge lacks support in fact and in law, and Turner respectfully requests that the Commission dismiss it in its entirety and issue a finding of no cause.

If Baxley submits anything to the Commission, please provide me with a copy. In submitting this position statement, Turner in no way waives its right to present new or additional facts and arguments. Further, this position statement, which is believed to be correct in all respects, does not constitute an affidavit and is not intended to be used as evidence of any kind in any subsequent adjudicative proceeding. Any allegations in the Charge not specifically addressed in this position statement are denied.

If you have any questions or require additional information, please do not hesitate to contact me.

* * *

Sincerely,

/s/ Jason Pruzansky

Jason Pruzansky

Davis+Gilbert LLP

Exhibit A

From: Baxley, Garrett - (TEXAS)
Sent: Monday, February 16, 2026 7:11 PM
To: Murguia, Corina
Subject: Personal Owners Manuel
Attachments: GB - Owners Manual .docx

Corina,

I want to send this with some context before you read it.

When you chose to be vulnerable with me, it shifted something. It told me you value honesty over optics. That mattered more than I probably showed in the moment.

What I'm attaching is something I've never shared at this depth in a workplace - especially with a leader. I won't pretend I'm not anxious putting it in writing. I don't want it to become a label or a definition of me. That isn't the purpose. My intention is to become the strongest version of myself possible - professionally and personally. I want to grow within this company. I want to earn greater responsibility and trust. I want to be stretched in rooms that demand more of me. That kind of growth doesn't happen without honest reflection and clear coaching.

What I'm sharing isn't an excuse, and it isn't a request for special treatment. It's context. Context that, if understood, allows you to coach me more precisely and allows me to operate at my highest level. I'm asking that this stay between us. I'm trusting you with something I haven't trusted a workplace with before.

If you see blind spots, tell me. If I'm miscalibrated, correct me. If I'm capable of more, push me.

I respect you - and I'm choosing to match vulnerability with vulnerability.

Garrett Baxley
Human Resource Manager

mobile 214.870.1145 | **email** **gbaxley@tcco.com**

Exhibit B

Verbal Warning

Garrett Baxley

Witness: Corina Murguia

Subject: Leadership Conduct & Expectations Reset

Date: February 27,2026

1. Purpose of the Conversation

Jeff met with Garrett to address the use of derogatory and sexually inappropriate language during an HR team meeting. The behavior was clearly communicated as:

- Not aligned with Turner's Culture
- Not reflective of the expectations of someone in a leadership role
- Inconsistent with the professionalism expected within HR and the broader team

Jeff emphasized that the comment had an impact on the team and required formal accountability.

2. Accountability & Responsibility

Garrett expressed that he felt it was unfair to be held accountable for language he "didn't know" was inappropriate.

Jeff clarified:

- Garrett is solely responsible for the words he chooses to use.
- It is his responsibility to educate himself on the meaning and impact of language.
- Intent does not remove accountability for impact.

Jeff acknowledged that the behavior did not appear intentional and may have been influenced by stress and a failure to pause before speaking. However, that context does not excuse the behavior.

3. Disciplinary Action

Jeff informed Garrett that:

- This constitutes a final warning.
- Any future behavior not aligned with standards would result in separation.
- A written notice will be issued to formally document the final warning.

4. Expectations Moving Forward

A clear path forward was outlined:

1. Apology to the HR team – Garrett agreed to apologize.
2. Behavioral modeling – He is expected to model professional leadership behavior consistently going forward.
3. Training requirement – He will complete professionalism and inclusion-related training.
4. Demonstrated accountability – He will be held accountable for his behavior, and he is to use best judgment on the words he speaks or his behavioral reactions.

Jeff reinforced that leadership expectations are non-negotiable, particularly within the company and in representing the team.

5. **Development & Retention Message**

While firm on accountability, Jeff also communicated:

- The company wants Garrett to succeed.
- This should be treated as a learning opportunity.
- There is still belief in his ability to grow with the organization if behavior improves.

The message balanced accountability with opportunity: he is being held responsible, but he is not being written off.

Overall Outcome

- Final written warning issued
- Clear expectations established
- Apology and training required
- Continued employment contingent on behavioral change
- Path forward framed as growth opportunity

Exhibit C

From: Waters, Jordyn - (TEXAS)
Sent: Wednesday, May 6, 2026 7:24 PM
To: Jones, Danielle - (TEXAS); Murguia, Corina
Subject: CTS Lonestar – Documented HR Concerns

Hi Danielle and Corina,

Thank you for taking my call this morning regarding Garrett Baxley. As I stated, this stemmed from a conversation with Andy Tandon requesting that I make a phone call to Kevin Ward to discuss challenges that I have had with Garrett Baxley while being at the CTS Lonestar project. Before making a blind phone call to Kevin I would like to send this to the 2 of you to bubble up to Kevin instead, but I am open to speaking with him as well upon my return-to-work Tuesday afternoon.

Please see my concerns below:

- On my first day on-site, Garrett was scheduled to meet with me Monday morning. Our first interaction did not occur until Wednesday during a brief lunch. During that interaction, he stated that I was "sent out here to take his job."
- I have made multiple requests for a walkthrough of the project org. chart to better understand roles, scope, and key stakeholders (Project Leadership Team, PX/CX, Track Leaders, etc.). These requests have not been fulfilled.
- Garrett operates independently and does not share updates from leadership meetings he attends. When asked for updates, he has stated that leadership prefers information to remain with the HRM. As a result, I often lack visibility into ongoing items until leadership requests status updates.
- Garrett keeps his office door closed throughout the day, making it difficult to determine availability or whether he is on-site.
- He has abruptly dropped from calls, particularly during discussions requiring input or clarification.
- There was a recent interaction with Corina where Garrett left the job site following some feedback that he received. Similar patterns have occurred where he exits conversations rather than continuing discussion.

Overall, my experience with the CTS Lonestar project team has been positive, and team members have been welcoming and supportive. However, from an HR perspective, I have consistently worked in collaborative HR team environments where information is shared to ensure aligned support. My experience on the HR side of this project has not aligned with that standard to date.

I am available to discuss further and provide additional examples as needed.

Thank you for your support on this.

Thank you,
Jordyn Waters, MBA
Human Resources Generalist

CTS LONESTAR ALLIANCE

mobile 281.979.0710 | **email** jwaters@tcco.com